

Reflection Questions

1. **CONTEXT** Earlier, we gave an act utilitarianism analysis in which Officer Schmidt made use of a statistical study indicating that mothers whose children were in the car were the safest drivers. We did not attempt to justify Officer Schmidt's use of that study but, by our silence, implied that it was a sound study. Suppose, however, we had said that Officer Schmidt was aware of a study that African American women were 7% less likely than the general population to have an accident and that Dolores was African American. Would you think Officer Schmidt was justified in using that as part of his utilitarian calculation? Explain.
2. **CONTEXT** Suppose the study mentioned in Question 1 suggested that African American women were 7% more likely than the general population to have an accident and Dolores was African American. Would Officer Schmidt be justified in using that as part of his utilitarian calculation? Explain.

1.5.3 Reasoning by Analogy: Casuistry and Circumstantial Reasoning

The *American Heritage Dictionary* defines **casuistry** as "the determination of right and wrong in questions of conduct or conscience by the application of general principles of ethics." That is the second entry for "casuistry" in the dictionary. The first is "Specious or excessively subtle reasoning intended to rationalize or mislead." Casuistry is the technique of argumentation most often used in legal reasoning and can, at times, seem to be a rhetorical technique used for twisting the truth rather than establishing it. The *Cambridge Dictionary of Philosophy* provides a more detailed definition:

The case-analysis approach to the interpretation of general moral rules. Casuistry starts with paradigm cases of how and when a given general rule should be applied, and then reasons by analogy to cases in which the proper application of the rule is less obvious... (107).

Ethical reasoning, like legal reasoning and other forms of reasoning that deal with highly context-dependent situations, seems to require techniques quite different from those of geometry and similar formal systems. Working from principles and rules frequently makes it extremely difficult to arrive at the best conclusion. Consider the following example from Jonsen and Toulmin:

If I go next door and borrow a silver soup tureen, it goes without saying that I am expected to return it as soon as my immediate need for it is over: that is not an issue and gives rise to no problem.

If, however, it is a pistol that I borrow and if, while it is in my possession, the owner becomes violently enraged and threatens to kill one of his other neighbors as soon as he gets back the pistol, I shall find myself in a genuinely problematic situation. I cannot escape from it by lamely invoking the general maxim that borrowed property ought to be returned promptly (7).

For almost any ethical principle, in order to properly account for all of the exceptional circumstances in which the principle might need to be used, we would need a list of conditions and constraints that would be too long to be useful. Indeed, it seems highly unlikely that it is even possible to compile such a list.

That is why we approach ethical problems by looking at various cases and using them as paradigms. Let us not forget, however, the first definition listed in the *American Heritage Dictionary*. Complex issues can sometimes be verbally manipulated by people skillful at winning arguments to confuse the real issues and reach a false conclusion. That is one reason why discussion and constant re-examination of the reasoning process are so important. In this book, ethical arguments are not contests between competing positions. As we take part in deliberative critical discussion throughout this book, arguments will serve as investigations that seek to establish the truth to the extent possible. The following section illustrates one use of that method.

1.5.4 Case: To Tell or Not To Tell

Professor Cooper has a rule in his class that students may use laptop computers for taking notes, but only for that purpose. Using a laptop to surf the Web, check e-mail, or work on homework is forbidden. Arnold, a student in Professor Cooper's class, happens to notice that Briana is working on homework for another class. He raises his hand, and when acknowledged, publicly announces that Briana is breaking Professor Cooper's rule for laptops.

Reflection Questions

1. **APPLICATION** Was Arnold's action ethical? Explain.
2. **CONTEXT** Ethical standards pertain to a specific group. Hence, to determine Arnold's ethical responsibilities, it must be with respect to a specific group to which Arnold belongs. What group containing Arnold did you use to determine the ethical standard for Question 1? Explain.

1.5.5 A Sample Deliberative Critical Discussion

The following is an example of deliberative critical discussion that takes place in a fictional classroom where the students all have names that are Greek letters.

PROFESSOR: Was Arnold's action ethical?

ALPHA: I say that Arnold's actions were neither ethical nor unethical. There was no moral issue here. Nor was any code of ethics violated. I don't see an issue at all.

BETA: I disagree. I believe Arnold violated the students' code of ethics. Alpha was certainly correct to say that there was no *explicit* code of ethics violated, but I believe that students constitute a group and

that group has norms of behavior. None of us has ever signed a contract agreeing not to rat out our colleagues, but it is a standard that we all understand.

GAMMA: I disagree with Alpha, but I also disagree with Beta. I think surreptitiously breaking the rule concerning laptops is a form of cheating. Professor Cooper has explicitly forbidden using laptops for any purpose other than taking notes. Therefore, we can reasonably expect that breaking that rule could involve a penalty on class participation grade. By hiding what she is doing, Briana is actually cheating. Because cheating is immoral, Arnold is morally obligated to tell.

ALPHA: Well, I cannot accept Gamma's argument. I do think, however, that Beta has a strong point. It is considered poor form to tattle on another student. I even agree with Gamma that a moral obligation would force Arnold to tell Professor Cooper about the violation. I just can't see using your laptop in class as cheating. Even if it were, I don't know that that implies that Arnold is obligated to tell. He may be obligated not to lie about it, but I don't think he is required to volunteer information of that kind.

DELTA: Of course, a few minutes ago, you couldn't see any ethical or moral aspects to this case Alpha. I think you should...

PROFESSOR: Delta, I must interrupt you there. That comment amounts to an *ad hominem* attack and does not contribute to our purpose. What Alpha previously thought does not now affect the validity of his argument. Perhaps you should begin again.

DELTA: Sorry, Professor. Sorry, Alpha. Let me start over. I think that Briana could be cheating, but we don't know for sure. The case does not tell us whether there is a class participation grade. If there is, I think Briana is cheating. I have to agree with Alpha, though. I see no obligation of Arnold to tell. Without an obligation, he is breaking the students' contract and is being unethical.

GAMMA: I see your point. However, I think there could be a different reason that Arnold has an obligation. If Professor Cooper has a class participation grade and if Professor Cooper grades on a curve, then Arnold has an obligation to himself and his colleagues not to let Briana potentially lower their grades. How about it Professor? Does Professor Cooper have a class participation grade? If so, does she grade on a curve?

PROFESSOR: The case does not tell us that. You however have made a clear statement:

- If Professor Cooper has a class participation grade *and*
- If Professor Cooper Grades on a curve

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PROFESSOR: The case does not tell us that. You however have made a clear statement:

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- Then Arnold is behaving ethically because he has an obligation to himself and to his fellow students to report what is, in effect, cheating.
- Otherwise (if either or both of the first two statements are false) Arnold is behaving unethically by breaking the (unwritten) student code.

We can certainly evaluate that statement, even though we don't know the answers to the first two statements from what the case gives us.

ALPHA: I agree with Gamma. Well done, Gamma. That is a nice clear analysis.

BETA: I agree that Gamma has done a nice job, but I still don't agree. Even if there is a curve, why is Arnold required to volunteer that information? That is not his job. It is Professor Cooper's job to grade fairly and to do what is necessary to be sure his grading is fair. Why does Arnold have to do that for her?

GAMMA: So, as I see it, we have a new question. If you know that someone is cheating, and you also know that the cheating might hurt others in the class because the grade is curved, are you morally obligated to tell on that person?

DELTA: I've been thinking about the issue of the curve, and I don't think it is really relevant. More accurately, I think that in a larger sense, every grade is curved in a way. If a person leaves this class with a higher grade than he or she deserves, that reduces the value of the grade I get. For example, if I am the only one to receive an A, people say, "Delta got an A. He was the only one to do that." If another person who does not deserve an A also got one, then my A would be diminished unfairly.

GAMMA: Delta may have a point there, but I prefer that we postpone that issue to focus on what seems to be the main issue here. On what grounds would Arnold be obligated to tell Professor Cooper about the violation of the rule?

BETA: Well, can the rule, "You must tell on a cheater," be made universal? That would tell us whether it's moral according to deontological ethical theory.

ALPHA: Certainly it appears that the utilitarian point of view favors such a rule. As pointed out by Delta, cheaters hurt everybody, maybe even themselves. Clearly then, cheating reduces overall happiness.

GAMMA: That's true, but does telling about the cheating mitigate that loss of happiness?

PROFESSOR: Well that's all our time for today. Continue to think about this case and produce a short free writing exercise for next time with your current position.